

PASSED

CHICKASAW TRIBAL LEGISLATURE

**Permanent Resolution Number 14-004
Amendments to Title 16 Legislative Rules and Procedures**

WHEREAS, in accordance with Article VII, Sections 4 and 7 of the Constitution of the Chickasaw Nation, the Chickasaw Tribal Legislature shall enact rules and regulations pertaining to the Chickasaw Nation, and shall make decisions pertaining to the acquisition, leasing, disposition and management of real property, subject to federal law, and

WHEREAS, in accordance with Article XI, Section 1 of the Constitution of the Chickasaw Nation, the Governor shall perform all duties appertaining to the office of Chief Executive. He shall sign official papers on behalf of the Nation, and

WHEREAS, the Chickasaw Tribal Legislature has determined that certain provisions of Title 16, Legislature and Legislation, in the Code of the Chickasaw Nation should be amended.

NOW, THEREFORE, BE IT RESOLVED, that the Chickasaw Tribal Legislature hereby adopts the following amendments to Title 16 of the Code of the Chickasaw Nation, to wit:

Under **SECTION 16-102 POWERS AND DUTIES GENERALLY.**, amend the following provisions only, to read as indicated:

The Legislature shall enact rules and regulations pertaining to the Nation generally, and;

6. Shall make decisions pertaining to the acquisition, leasing, disposition and management of real property, subject to federal law;

7. Shall sit as a court in all cases of impeachment, and its decision shall be final;

8. Shall approve, amend or reject the annual budget of the Nation;

9. The Governor shall have power to establish and appoint committees, members, and delegates to represent the Chickasaw Nation, by and with the advice and consent of the Tribal Legislature;

10. May override the Governor's veto;

11. Shall ordain and establish such inferior courts to the Supreme Court;

12. May confer other jurisdictions to the Supreme Court; and

13. May propose amendments to the Constitution of the Chickasaw Nation.

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Under **SECTION 16-107 DEFINITIONS.**, amend the following provisions only, to read as indicated:

10. "Executive Session" means a meeting in which at least nine (9) members of the Legislature are in attendance. It is closed to the public, and called for the purpose of deciding issues of internal policies and procedures of the Chickasaw Nation.

15. "Timekeeper" means that member of the Legislature, the Secretary, who shall time the debate of the members, the comments from citizens, and any other speaking that may require time constraints.

Under **SECTION 16-108 MEMBERS & OFFICERS - GENERAL PROVISIONS.**, delete part C., and re-number the following parts as indicated:

Part D. becomes part C.; part E. becomes part D.; part F. becomes part E.; part G. becomes part F.; part H. becomes part G.; part I. becomes part H.; part J. becomes part I.; and, part K. becomes part J.

Under **SECTION 16-109 OFFICERS OF THE TRIBAL LEGISLATURE.**, A. Chairperson of the Legislature: add sub-section 5.

5. The Chairperson of the Legislature may be counted as a member of a committee in order to constitute a quorum.

Add: **SECTION 16-111 SPECIAL REQUESTS.**

A. Special requests for funding to come from the Legislative Miscellaneous Line Item shall be considered by the majority of the Committee of the Whole or the Legislative Committee.

B. Special requests for Legislators taking more than one out of state trip or more than one in state trip shall be considered by the Committee of the Whole or the Legislative Committee.

SECTION 16-204, (B) 8. (a) shall read as follows: (Text appearing in strike-through shall be deleted.)

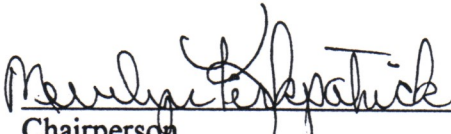
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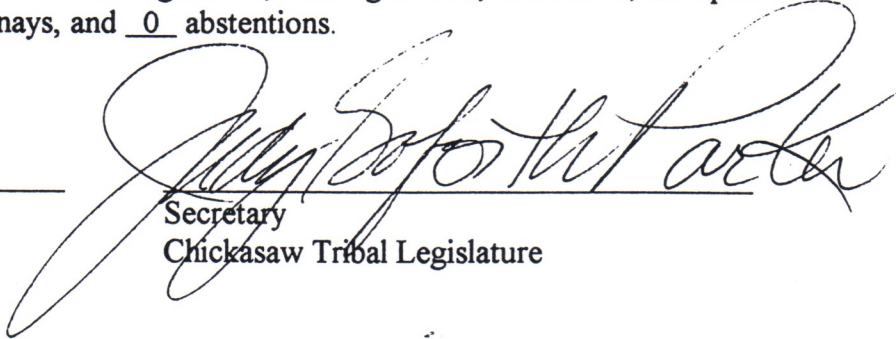
a. The Legislative Committee shall be exempt from the four standing committee rule referred to in SEC. 16-204,(B) 6. The Legislative Committee shall be responsible for the development of tribal laws relating to their Legislative authorities under the Constitution of the Chickasaw Nation. Sub-committees may include, but are not limited to, the calendar, rules, elections, and ethics.

Delete sub-sections (g) and (h) of **SECTION 16-204, (B) 8.**

Executed in regular session of the Chickasaw Tribal Legislature, meeting at Ada, Oklahoma, on April 18, 1997, by a vote of 13 ayes, 0 nays, and 0 abstentions.

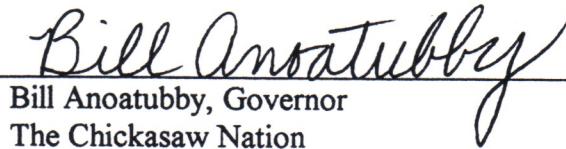


Chairperson
Chickasaw Tribal Legislature



Secretary
Chickasaw Tribal Legislature

Concur:



Bill Anoatubby, Governor
The Chickasaw Nation

Date:

APR. 23 1997

CHICKASAW TRIBAL LEGISLATURE

**Permanent Resolution Number 14-004
Amendments to Title 16 Legislative Rules & Procedures**

Explanation: Adoption of this resolution will make modifications to the Legislative rules and procedures as found in Title 16 of the Code of the Chickasaw Nation.

Requested by: The Legislative Committee

Presented by: Lisa Shephard, Chairman
Legislative Committee